

HOUSE No. 4336

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1154) of Michael J. Finn relative to insurance coverage of mobile integrated health, reports recommending that the accompanying bill (House, No. 4336) ought to pass.

For the committee,

JAMES M. MURPHY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to insurance coverage of mobile integrated health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17Z the following new section:-

3 Section 17AA. The group insurance commission and any carrier as defined in section 1
4 of chapter 176O or other entity which contracts with the commission to provide health benefits
5 to eligible employees and retirees and their eligible dependents shall not decline to provide
6 coverage for medical, behavioral or health care services solely on the basis that those services
7 were delivered by a health care provider, as defined in section 1 of chapter 111O, participating in
8 a mobile integrated health care program approved by the department of public health pursuant to
9 chapter 111O. Medical, behavioral or health care services delivered by way of an approved
10 mobile integrated health care program shall be covered to the same extent as if they were
11 provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of
12 payments for otherwise covered services shall not be reduced on the grounds that those services
13 were delivered by a health care provider participating in an approved mobile integrated health
14 care program. A contract that provides coverage for care delivered may contain a provision for a

deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 2. Chapter 111O of the General Laws, as appearing in the 2022 Official Edition, is hereby amended in section 2 by adding the following subsection:-

(c) MIH programs that are focused on behavioral health services shall not be subject to application and registration fees.

SECTION 3. Chapter 118E of the General Laws is hereby amended by inserting after section 10Z the following new section:-

Section 10AA. The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third party administrators under contract to a Medicaid managed care organization, the Medicaid primary care clinician plan, or an accountable care organization shall not decline to provide coverage for medical, behavioral or health care services solely on the basis that those services were delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that

provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 4. Chapter 175 of the General Laws, is hereby amended by inserting before section 47CCC the following new section:-

Section 47AAA. Any blanket or general policy of insurance described in subdivision (A), (C), or (D) of section one hundred and ten which is issued or subsequently renewed by agreement between the insurer and the policyholder, within or without the commonwealth, during the period within which this premium is effective, or any policy of accident or sickness insurance as described in section one hundred and eight which provides hospital expense and surgical expense insurance and which is delivered or issued for delivery or subsequently renewed by agreement between the insurer and the policyholder in the commonwealth, during the period within which this provision is effective, or any employers' health and welfare fund which provides hospital expense and surgical expense benefits and which is issued or renewed to any person or group of persons in the commonwealth, during the period within which this provision is effective, shall not decline to provide coverage for medical, behavioral or health care services solely on the basis that those services were delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of

chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 5. Chapter 176A of the General Laws, is hereby amended by inserting after section 8DDD the following new section:-

Section 8EEE. Any contract between a subscriber and the corporation under an individual or group hospital service plan which is delivered, issued or renewed within the commonwealth shall not decline to provide coverage for medical, behavioral or health care services delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible,

83 copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable
84 to delivery of the same services within a health care facility.

85 SECTION 6. Chapter 176B of the General Laws, is hereby amended by inserting after
86 section 4DDD the following new section:-

87 Section 4EEE. Any subscription certificate under an individual or group medical service
88 agreement delivered, issued or renewed within the commonwealth shall not decline to provide
89 coverage for medical, behavioral or health care services delivered by a health care provider, as
90 defined in section 1 of chapter 111O, participating in a mobile integrated health care program
91 approved by the department of public health pursuant to chapter 111O. Medical, behavioral or
92 health care services delivered by way of an approved mobile integrated health care program shall
93 be covered to the same extent as if they were provided in a health care facility, as defined in
94 section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be
95 reduced on the grounds that those services were delivered by a health care provider participating
96 in an approved mobile integrated health care program. A contract that provides coverage for care
97 delivered may contain a provision for a deductible, copayment or coinsurance requirement for a
98 service provided by a health care provider participating in an approved mobile integrated health
99 care program as long as the deductible, copayment or coinsurance does not exceed the
100 deductible, copayment or coinsurance applicable to delivery of the same services within a health
101 care facility.

102 SECTION 7. Chapter 176G of the General Laws, is hereby amended by inserting after
103 section 4VV the following new section:-

Section 4WW. Any individual or group health maintenance contract that is issued or renewed shall not decline to provide coverage for medical, behavioral or health care services delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral, or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 8. Chapter 176I of the General Laws, is hereby amended by inserting after section 13 the following new section:-

Section 14. An organization entering into a preferred provider contract shall not decline to provide coverage for medical, behavioral or health care services delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral, or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services

127 shall not be reduced on the grounds that those services were delivered by a health care provider
128 participating in an approved mobile integrated health care program. A contract that provides
129 coverage for care delivered may contain a provision for a deductible, copayment or coinsurance
130 requirement for a service provided by a health care provider participating in an approved mobile
131 integrated health care program as long as the deductible, copayment or coinsurance does not
132 exceed the deductible, copayment or coinsurance applicable to delivery of the same services
133 within a health care facility.